

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
JACK MANNO,

Plaintiff,

-against-

SUMMONS

Index #:

Date Purchased:

The basis of venue
designated is: The
County where the
Plaintiff resides is
Richmond County

THE CITY OF NEW YORK and
"JOHN DOE No. 1", through "JOHN DOES
No. 3,

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to service a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Staten Island, NY
December 1, 2023



LAW OFFICES OF ROBERT E. BROWN,
PC
Attorneys for Plaintiff
JACK MANNO
1200 South Avenue, Suite 201
Staten Island, New York 10314
(718) 979-9779

TO: The City of New York
Corporation Counsel
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
JACK MANNO,

INDEX No.

Plaintiff,

-against-

VERIFIED
COMPLAINT

THE CITY OF NEW YORK and
“JOHN DOE No. 1”, through “JOHN DOES
No. 3,

Defendants.

-----X

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of Plaintiff's rights under the Constitution of the United States, the Constitution of the State of New York as well as the common law of the State of New York.

JURISDICTION AND VENUE

2. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against Doe No. 1 through John Does Nos. 3 and THE CITY OF NEW YORK (“CITY”) (collectively, “Defendants”).

3. Notice of the Plaintiff's claim and his intention to sue thereon, and of the time when and the place where his injuries were sustained, was duly served and filed with the Defendant CITY, and acknowledged by Defendant CITY on the 25th day of May 2023. More than thirty (30) days have elapsed since the service of such notice of claim, and Defendant CITY, has failed and

refused to adjust such claim.

4. A General Municipal Law Section 50-h Hearing was conducted by Defendant CITY on Plaintiff before the commencement of this action.

5. This action is started within one year and 90 days from the date of occurrence.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

Plaintiff

7. Plaintiff JACK MANNO ("Plaintiff") is a resident of Richmond County.

Defendants

8. At all times herein stated, Defendant CITY was, and continues still to be, a public corporation within the State of New York, and duly created, organized and existing under and by virtue of the laws of the State of New York.

9. At all times herein stated, the CITY was, and continues still to be, a municipal corporation within the State of New York, which was duly created, organized and existing under, by virtue of the laws of the State of New York.

10. At all times herein stated, the CITY did maintain a police department pursuant to law.

11. Defendant CITY operates the New York City Police Department ("NYPD"), a department or agency of Defendant CITY responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers.

12. Upon information and belief, John Does 1 through 3 at all relevant times were employed by NYPD.

13. Plaintiff does not know the real names and shield numbers, if any, of Defendants Doe No. 1 through John Does Nos. 3.

14. At all times herein stated, the CITY did employ police officers pursuant to law.

15. At all times herein stated, Doe No. 1 through John Does Nos. 3 Defendants represented to the Plaintiff that they were employed by the CITY and worked at the NYPD (hereinafter collectively "NYPD Officers"), all of whom were in the employ of Defendant CITY and assigned to the NYPD.

16. At all times herein stated, Defendant CITY, its agents, servants and employees, were acting under color of state law and pursuant to municipal policy and custom.

RELEVANT FACTS

17. Plaintiff was wrongfully arrested and detained on or about April 30, 2023.

18. On the date of occurrence, Plaintiff was a patron at the business located at 4300 Amboy Road, Staten Island, New York when he was gang assaulted by seven attackers who were unprovoked. The assault of Plaintiff was captured on video. Both Plaintiff and the manager of the business told the NYPD officers that Plaintiff was the victim of a gang assault, and it was captured on video. The NYPD officers ignored this information and arrested Plaintiff anyway.

19. When the police arrived on the scene, Plaintiff was wrongfully arrested and taken to the 122 Precinct without consent.

20. Plaintiff was detained for approximately six hours.

21. The occurrence herein above alleged was due solely to the gross negligence and deliberate indifference of the CITY, its agents, servants and employees, without any fault or want

of care on the part of the Plaintiff contributing thereto.

22. As a result of such occurrence, the Plaintiff suffered confinement, loss of liberty, shock, embarrassment, fear and mental anguish, was falsely caused to be confined, and was otherwise injured and damaged.

23. Plaintiff was released from NYPD's custody without ever being arraigned in front of a Judge and given a desk appearance ticket. The charges were later dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION
(42 U.S.C. § 1983)**

24. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

25. Defendants by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

26. Defendants, by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

27. The conduct and actions of Defendants acting under color of law and under their authority as officers was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific serious bodily harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

28. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the

damages herein before alleged.

**AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest)**

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. Defendants violated the Fourth and Fourteenth Amendments because they arrested Plaintiff without probable cause.

31. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**AS AND FOR A THIRD CAUSE OF ACTION
(Monell Claim)**

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

34. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

35. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD included, but were not limited to, police officers: failing to report misconduct of other officers; unlawfully searching individuals and arresting individuals.

36. In addition, Defendant CITY engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of Plaintiff's rights as described herein. As a result of the failure of Defendant CITY to properly recruit, screen, train, discipline, and supervise its officers, including the

individual defendants, Defendant CITY has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

37. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

38. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

39. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

40. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and NYPD, Plaintiff was subjected to an illegal search and unlawfully arrested.

41. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

42. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right to be free from false arrest/unlawful imprisonment and the right to be free from unreasonable search and seizure.

43. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and

disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Negligence)

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. Defendants owed Plaintiff a duty of care to prevent them from being false arrested, maliciously prosecuted, illegally searched and assaulted.

46. Defendants breached that duty of care.

47. Defendants' breach of duty was the but-for cause of Plaintiff's injuries.

48. Defendants' breach of duty was the proximate cause of Plaintiff's injuries.

49. Plaintiff sustained damages, including but not limited to emotional injuries and pain and suffering as a result.

AS AND FOR A FIFTH CAUSE OF ACTION

(Negligent Hiring, Training and Supervision Against Defendant City)

50. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

51. The above-described injuries suffered by the Plaintiff are the proximate result of the negligence of the Defendant CITY in that Defendant CITY failed to exercise reasonable care in the hiring, employment, supervision, and training of its employees in NYPD.

52. Defendant CITY failed to properly train Defendants as to the appropriate investigative techniques required to assess criminal liability and probable cause.

53. Defendant CITY failed to exercise reasonable care by retaining and not terminating the employment of individual Defendants or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the Defendant CITY.

54. By reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A SIXTH CAUSE OF ACTION
(New York Constitution Art. I, § 11)**

55. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

56. By the aforesaid acts, defendants have violated Plaintiff's right to the equal protection of laws under Article I, § 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.

57. The conduct and actions of the individual Defendants and Defendant CITY, acting under color of law, in falsely arresting, detaining, and prosecuting Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under laws and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the defendants, including defendant NYC, sued as a person within the meaning of Article I, § 11, deprived the Plaintiff of rights, including but not limited to, rights under Article I, § 8, 9, guaranteeing freedom of expression and association, Article I, § 12, guaranteeing protection against unlawful seizure of the person, Article I, § 11 guaranteeing due process and equal protection under the law, and Article I, § 5 guaranteeing protection from cruel and unusual punishment.

58. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(Malicious Prosecution)**

59. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

60. By virtue of the aforesaid acts, defendants, their agents, servants, employees and/or representatives, maliciously, and unjustifiably prosecuted Plaintiff.

61. The prosecution of Plaintiff by Defendants was malicious and without just or probable cause or appropriate reason.

62. The Defendants knowing that said charges were false and/or lacked probable cause, continued to prosecute the Plaintiff.

63. The charges apparently resulted in a declined prosecution, but only after Plaintiff spent a significant amount of time in custody.

64. As a result thereof, the Plaintiff was the victim of malicious prosecution by the Defendants, their agents, servants, employees and/or representatives, and suffered the injuries set forth above.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all Defendants, jointly and severally;
- (b) Punitive damages against the individual Defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: Staten Island, New York
December 1, 2023



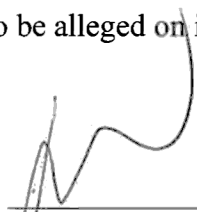
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STATE OF NEW YORK)
)ss.:
COUNTY OF RICHMOND)

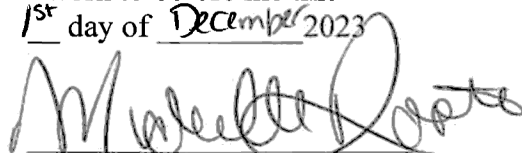
VERIFICATION

JACK MANNO being duly sworn deposes and says: I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.



JACK MANNO

Sworn to before me this
1st day of December 2023



Notary Public